

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                   |                                              |                           |                                                                                                                                                                                                                       |
|---------------------------------------------------|----------------------------------------------|---------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Investigator:<br>Joshua Brickell                  | Team:<br>Squad #01                           | CCRB Case #:<br>201501024 | <input checked="" type="checkbox"/> Force <input checked="" type="checkbox"/> Discourt. <input type="checkbox"/> U.S.<br><input type="checkbox"/> Abuse <input type="checkbox"/> O.L. <input type="checkbox"/> Injury |
| Incident Date(s)<br>Thursday, 02/12/2015 12:30 AM | Location of Incident:<br>970 Richmond Avenue | 18 Mo. SOL<br>8/12/2016   | Precinct:<br>121                                                                                                                                                                                                      |
| Date/Time CV Reported<br>Fri, 02/13/2015 9:06 AM  | CV Reported At:<br>CCRB                      | How CV Reported:<br>Phone | Date/Time Received at CCRB<br>Fri, 02/13/2015 9:06 AM                                                                                                                                                                 |

| Complainant/Victim | Type | Home Address |
|--------------------|------|--------------|
|                    |      |              |

| Witness(es) | Home Address |
|-------------|--------------|
|             |              |
|             |              |
|             |              |
|             |              |
|             |              |

| Subject Officer(s)    | Shield | TaxID  | Command |
|-----------------------|--------|--------|---------|
| 1. SGT Andre Teterycz | 03188  | 907433 | 123 PCT |

| Officer(s)             | Allegation                                                          | Investigator Recommendation |
|------------------------|---------------------------------------------------------------------|-----------------------------|
| A . SGT Andre Teterycz | Force: Sgt. Andre Teterycz pointed his gun at § 87(2)(b)            | A . Exonerated              |
| B . SGT Andre Teterycz | Discourtesy: Sgt. Andre Teterycz spoke discourteously to § 87(2)(b) | B . Exonerated              |
| C . SGT Andre Teterycz | Discourtesy: Sgt. Andre Teterycz spoke discourteously to § 87(2)(b) | C . Unsubstantiated         |

### Case Summary

On February 12, 2015, at approximately 12:30 a.m., § 87(2)(b) was driving north on Richmond Avenue in Staten Island with his coworker, § 87(2)(b) § 87(2)(b) and § 87(2)(b) work for § 87(2)(b), a repossession company. They were driving around and looking for vehicles that they were supposed to repossess, when § 87(2)(b) observed a tow truck towing a vehicle that was on his list. The tow truck was driven by § 87(2)(b) who was with his wife, § 87(2)(b) (front passenger seat), and his two employees, § 87(2)(b) and § 87(2)(b) and § 87(2)(b) did not know either of their last names). § 87(2)(b) followed the vehicle for a couple of minutes until the driver seemed to realize that § 87(2)(b) was following him. The driver went through two red lights to try and lose § 87(2)(b) who also ran the red lights. § 87(2)(b) noticed an unmarked dark colored Ford Explorer pull alongside the tow truck in front of CSI College. At the intersection of Victory Boulevard and Gannon Avenue South the third vehicle pulled in front of the tow truck, causing it to stop. § 87(2)(b) stopped his vehicle behind the tow truck and exited his vehicle.

§ 87(2)(b) approached the tow truck and at the same time that a uniformed officer, identified via the investigation as Sgt. Andre Teterycz, approached the driver's door of the tow truck. Sgt. Teterycz drew his gun, pointed it at § 87(2)(b) and allegedly said, "Get the fuck back in your vehicle before I fucking shoot you," (**Allegations A and B**). § 87(2)(b) went back to his vehicle and Sgt. Teterycz spoke to the driver of the tow truck for a few minutes. He then walked back to § 87(2)(b)'s vehicle and inquired as to why § 87(2)(b) was following him. When § 87(2)(b) explained that he thought the driver of the tow truck was "stealing" a car that he was supposed to repossess, Sgt. Teterycz allegedly said, "I don't fucking care, this guy works for the same company," (**Allegation C**). Sgt. Teterycz did not give § 87(2)(b) a summons at the time, however, § 87(2)(b) later received a summons for running a red light.

### Mediation, Civil and Criminal Histories

- § 87(2)(b) declined mediation, § 87(2)(b).
- § 87(2)(b) had not filed a notice of claim as of April 3, 2015 (encl. 13).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

### Civilian and Officer CCRB Histories

- This is the third complaint involving § 87(2)(b) (encl. 2).
  - § 87(2)(b)
- Sgt. Andre Teterycz has been a member of the service for twenty one years. He does not have any substantiated CCRB allegations, § 87(2)(g)

## Finding and Recommendations

### Allegations Not Pleaded

§ 87(2)(g)

### Allegation A – Force: Sgt. Andre Teterycz pointed his gun at § 87(2)(b)

It is undisputed by virtue of Sgt. Teterycz's testimony that he drew his gun and pointed it at § 87(2)(b)

§ 87(2)(b). It is also undisputed by virtue of § 87(2)(b)'s testimony that he followed § 87(2)(b)

§ 87(2)(b) and § 87(2)(b)'s tow truck and ran two red lights in doing so.

§ 87(2)(b) alleged that he exited his vehicle and approached the tow truck with the intent of speaking with Sgt. Teterycz about the fact that § 87(2)(b) and § 87(2)(b) had "stolen" his vehicle. Sgt. Teterycz saw him approaching from the rear of the truck, drew his gun, pointed it at § 87(2)(b) and said, "Get the fuck back in your vehicle before I fucking shoot you." Sgt. Teterycz did not say anything before making this statement. At the time that Sgt. Teterycz pointed his gun at § 87(2)(b) he had his hands at his sides and was not holding anything. He lifted his arms above his head and walked back to his vehicle.

§ 87(2)(b) § 87(2)(b)'s passenger, missed two scheduled appointments, and was not interviewed.

§ 87(2)(b) and § 87(2)(b) § 87(2)(g) after they pulled over, § 87(2)(b) and § 87(2)(b) exited their vehicle and started running towards § 87(2)(b)'s vehicle. They refused multiple orders by Sgt. Teterycz to get back in their vehicle, and were screaming and acting erratically.

Sgt. Teterycz testified that he exited his vehicle and approached the driver's side of the tow truck. He spoke with § 87(2)(b) who told him that § 87(2)(b) was chasing them. Sgt. Teterycz heard doors opening and closing behind the tow truck and looked back towards the minivan. He saw § 87(2)(b) walking towards him from his vehicle from about forty feet away. Sgt. Teterycz was unable to see where § 87(2)(b) was at the time. § 87(2)(b) had his right hand up in the air balled up in a fist, and his left hand was down behind his left leg. It was dark on the road, but well lit. Sgt. Teterycz was able to clearly see § 87(2)(b) except for his left hand, which he believed might be hiding a weapon. § 87(2)(b) was screaming and cursing that the tow truck had "stolen his car" as he approached.

Sgt. Teterycz told § 87(2)(b) four to five times to get back into his vehicle, however, § 87(2)(b) continued to move towards Sgt. Teterycz, screaming and cursing. When § 87(2)(b) was approximately twenty feet away from Sgt. Teterycz, Sgt. Teterycz saw a head bobbing up and down on the other side of the vehicle, which he assumed was § 87(2)(b). He did not know what § 87(2)(b) who was also yelling and cursing at the occupants of the tow truck, intended to do, or if he and § 87(2)(b) meant him any harm. Furthermore, Sgt. Teterycz still did not know if the occupants of the tow truck were telling the truth and was cognizant of them as well. Sgt. Teterycz removed his gun and pointed it at § 87(2)(b) and told him to go back to his car because he did not want to hurt him. § 87(2)(b) stopped moving and put both hands at shoulder level, and started to back up towards his vehicle. Sgt. Teterycz saw that he had nothing

in his hands and felt comfortable enough to holster his gun at that point. The entire interaction lasted only a few seconds.

§ 87(2)(g)

According to NYPD v. Gliner, an officer can point his firearm at another person so long as he reasonably fears for his safety (OATH Case No. 995/00) (encl. 0A – S).

§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegation A** be closed as **exonerated**.

**Allegation B – Discourtesy: Sgt. Andre Teterycz spoke discourteously to** § 87(2)(b)

§ 87(2)(b) alleged that Sgt. Teterycz pointed his gun at him and said, “Get the fuck back in your vehicle before I fucking shoot you.”

§ 87(2)(g)

§ 87(2)(b) approached the tow truck, was screaming and cursing, and refused to comply with multiple directives by Sgt. Teterycz to return to his vehicle.

§ 87(2)(b) corroborated that Sgt. Teterycz said, “Get the fuck back in your vehicle,” but denied that Sgt. Teterycz threatened to shoot § 87(2)(b) § 87(2)(b) did not hear Sgt. Teterycz make the statement.

Sgt. Teterycz testified that he said, “Get back in your car, I don’t want to shoot you.” He said that he may have used profanity, but he did not recall whether he did so.

In certain stressful encounters, officers are permitted to use limited profanity where needed to gain compliance or maintain control of the incident (NYPD v. Court, OATH Index No. 79627/04) (encl. 0T – A3).

§ 87(2)(g)  
[Redacted]  
[Redacted]  
[Redacted]  
[Redacted]  
[Redacted]

§ 87(2)(g)  
[Redacted]  
[Redacted]  
[Redacted]  
[Redacted]  
[Redacted] Therefore, it is recommended that **Allegation B** be closed as **exonerated**.

**Allegation C – Discourtesy: Sgt. Andre Teterycz spoke discourteously to** § 87(2)(b)  
§ 87(2)(b) alleged that while he was speaking with Sgt. Teterycz about the situation after he had returned to his vehicle, he told Sgt. Teterycz that the vehicle on the tow truck was assigned to them. Sgt. Teterycz responded, “I don’t fucking care, this guy works for the same company.”

§ 87(2)(b) did not hear Sgt. Teterycz make the alleged statement. § 87(2)(b) did not hear Sgt. Teterycz use any additional profanity. § 87(2)(g)  
[Redacted]  
[Redacted]

Sgt. Teterycz testified that after he found out that § 87(2)(b) and § 87(2)(b) worked for the same repossession company, he walked back to the minivan and told § 87(2)(b) as much. He denied saying, “I don’t fucking care, this guy works for the same company.”

§ 87(2)(g)  
[Redacted]  
[Redacted]  
[Redacted] Therefore, it is recommended that **Allegation C** be closed as **unsubstantiated**.

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Team: \_\_\_\_\_

Investigator: \_\_\_\_\_  
Signature Print Date

Supervisor: \_\_\_\_\_  
Title/Signature Print Date

Reviewer: \_\_\_\_\_  
Title/Signature Print Date

Reviewer: \_\_\_\_\_  
Title/Signature Print Date